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SOME SOCIO-ECONOMIC ASPECTS OF ABOLITION OF ZAMINDARI SYSTEM IN ORISSA

SRINIBAS RATH*

0.1 The agrarian structure of Orissa, throughout the British period, was based on the structure of land control and relations among classes associated with land cultivation. The British recognised the revenue collecting intermediaries as *Zamindars* with proprietory rights over the lands. These *Zamindars* remained loyal to the British and with their blessings they gradually acquired both economic power and political importance. The Zamindary system worked as an instrument of oppression over the tenants of Orissa throughout the 19th century. The evils of this system, coupled with the economic and social plight of the peasants ultimately led to the demand for its abolition. The Zamindary system was abolished with the enactment of the Orissa Estates Abolition Act' 1951 (here after O.E.A. Act). It aimed at abolishing all the intermediary interests between the government and the raiyats and thereby allowing the government and the raiyats and thereby allowing the government to prepare a comprehensive agrarian law for the welfare of the peasants. The abolition of Zamindary system brought about a socio-economic transformation in Orissa. In the present paper an attempt has been made to make a study of some aspects of that transformation.

1.1 The O.E.A. Act was passed by the Orissa Legislative Assembly on 28 September, 1951 after a prolonged discussion and it got the assent of the President on 23

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January, 1952. With the passing of the O.E.A. Act, the process of abolishing the intermediary interests began. The liability of the *Zamindars* to pay revenue or local cesses for the estates ceased and the interest of the intermediaries were transfered to the government. But they were treated as raiyats in case of their homesteads, private *Nij-jote*,[1] *Nijchas*[2] or *Sir land*[3] which were in their *khas* possession.

1.2 The abolition of the intermediaries brought the elimination of the *Mustajars*[4] in the Koraput district and the *Thekedars*[5] and *Gountias*[6] in Western Orissa. The collection of illegal *abwabs*[7] by them ceased. This was an instant relief to the raiyats. The *Anchal Adhikaries*,[8] who were in charge of the vested estates, looked after the personal problems and difficulties of the *raiyats*.[9] Exaction of *Sunia Bheti*,[10] which existed in some districts in spite of being declared as illegal by the tenancy laws. was stopped. The *Jagirdars, Paikas*[11] who were enjoying lands for rendering personal services as and when required by the ex-*Zamindars*, were also relieved of such services and the Act provided for the settlement of fair and equitable rent on land in their favour as occupancy *raiyats*.

1.3 The *Zamindars* were enjoying various important rights, e.g., the right of profit in new lands, cleared forests, fisheries, dead trees, etc., the right to grant leases. the right to re-enter in the next settlement, the right of inheritance and the right to transfer and partition.[12] By gradually acquiring all these rights they emerged as a powerful social class during the British period. With the abolition of the Zamindaries, they lost their rights and their social status diminished in course of time.

II

2.1 The *raiyats* were to a great extent, relaxed of their burden and harassment. During the pre-vesting period the *Zamindars* were realising produce rent from the tenants in respect of certain lands according to their sweet will and the tenants were subjected to much harassment. To grant relief to the tenants, the government collected the commuted value of the produce as rent at concessional rates.[13] In the scheduled districts like Koraput, various ameliorative measures were being undertaken by the Tribal Rural Welfare Department of government to improve the condition of the tribal people. The podu survey and cultivation in the same districts immensely profited the tribals and saved the forests from denundation and soil erosion.[14]

2.2 Under the ex-*Zamindars* the employees were poorly paid and had no security of service. After vestings, the salaries of those who were retained in service were brought on a par with those of the government servants holding similar posts.[15] This gave them incentive to work, improved their efficiency and morale and their security of service was also assured.

2.3 After the vesting, the management of the estates were placed under *Anchal shasan*,[16] as provided under chapter III of the O.E.A. Act. The *Anchal Adhikaries* were appointed to be in charge of the administration of the Anchals. They were the pivot in the administration of vested *Zamindaries*. In the new set up, the

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tenants faced a peculiar situation. They were tagged with the personal administration of the *Zamindars* for many years. After the abolition of *Zamindaries* the system of personal administration was abolished and they were to adjust themselves with the new set up of impersonal administration.

2.4 On the other hand, the *Zamindars* also faced a peculiar situation. They were deprived of their power and property which they were enjoying for many years. For several *Zamindars*, Zamindary was their social only source of livelihood. With its abolition their status decreased to a considerable extent. They were to be treated sympathetically in case of their claims and compensations. This greatly depended upon the efficiency and integrity of the Anchal officers. But they had not been able to fulfill all the hopes and expectations of both the *Zamindars* and tenants.[17] This was because the element of personal rule of intermediaries to which the tenants were used, was suddenly removed and was replaced by the rule of law. It was incapable of producing quick and convenient results for all concerned. The intermediaries who lost their property due to the abolition of their estates were not satisfied with the system of *Anchal sasan* howsoever perfect it might be.

2.5 The non-cultivating raiyats with thousand of acres of land did not come under the purview of this Act as they did not have any legal proprietory rights. This omission in the O.E.A. Act, was a matter of serious concern for the state government. But in real practice these big landholders were enjoying the status of the proprietors and were realising huge amount of rent from the tillers of the soil who were toiling in the sun and rain. They were also evicting the actual tillers of the soil at their own discretion. This defect in the O.E.A. Act frustrated its spirit, as tillers of the soil were expected to be the owner of the soil to some extent.

III

3.1 The abolition of estates no doubt brought a change in the social and economic life of the people of Orissa. The agrieved *Zamindars*, instead of adjusting themselves with the changing situation, took recourse to judicial protection on the pretext of personal rights. The hostile attitude of these *Zamindars* and some of the lacunae in the O.E.A. Act neither improved the condition of the tiller of the soil nor helped the increase of food production. However, it paved the way for the subsequent enactment for land reforms and agrarian reconstruction in the province.

NOTES AND REFERENCES

1. Private land of the proprietors or proprietory tenure holders.
2. Land cultivated by the proprietor or proprietory tenure holders.
3. Proprietor's private land.
4. Rent collectors in the district of Koraput.
5. A type of intermediaries found in Sambalpur district. They were given lease by the *Zamindars*.

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6. Village head-man. *Gauntiahi* system was existing in Western Orissa.

7. illegal taxes (cess) collected by land lords from their tenants. There were as many as 64 types of such illegal taxes being collected in different parts of Orissa.

8. Local officers.

9. *Abolition of Estates : Administrative Report November 1952-April 1956,* Board of Revenue, Cuttack.

10. A form of *abwab* collected on the occasion of the Ist day of the Oriya calander.

11. Oriya soldiers.

12. S.L. Maddox, *Final Report on the Survey and Settlement of the province of Orissa,* 1890-1900, Vol. I, P. 170

13. *Abolition of Estates : Administrative Report, November 1952-April 1956,* Board of Revenue, Cuttack.

14. *Administrative Report :* Tribal Rural Welfare Department, Government of Orissa-1954.

15. *Abolition of Estates: Administrative Report, November 1952 April 1956,* Board of Revenue, Cuttack.

16. Local administration, a system introduced by the Orissa Government after vesting of the Estates.

17. B.K. Mishra, *Land tenure and Land reforms in Orissa,* Board of Revenue, p. 102.

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